To be argued by:
MICHAEL J. YETTER (20 Minutes Requested)

Court of Appeals

of the State of New York

APL-2023-00099

THE PEOPLE OF THE STATE OF NEW YORK,

Respondent,

–against–

MARK WATKINS,

Defendant-Appellant.

BRIEF FOR RESPONDENT

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PRELIMINARY STATEMENT

By permission of the Honorable Shirley Troutman, Associate Judge of the Court of Appeals, defendant Mark Watkins appeals from a June 9, 2022 order of the Appellate Division, First Department. By that order, the Appellate Division unanimously affirmed a March 26, 2018 judgment of the Supreme Court, New York County, convicting defendant, after a jury trial, of Attempted Assault in the First Degree (Penal Law §§ 110.00, 120.10[1]), Assault in the Second Degree (Penal Law § 120.05[2]), and Criminal Possession of a Weapon in the Third Degree (Penal Law § 265.02[1]). Defendant was sentenced, as a second violent felony offender, to an aggregate term of 13 years in prison to be followed by five years of post-release supervision. He is currently incarcerated pursuant to that judgment.

The judgment arose from an attack that occurred at about 1:00 p.m. on October 7, 2016, on East 103rd Street in the East Harlem neighborhood of Manhattan. Defendant, who is Black, approached 65-year-old David Pena, a non-Black Hispanic who was a 25-year resident of East Harlem, and punched Pena in the face with his right hand while clutching a hard object, fracturing Pena's left orbital bone. During the subsequent interaction, Pena looked at defendant's face for about 10 seconds from a distance of approximately 10 to 15 feet before defendant walked away.

On October 10, 2016, Pena reported the attack to the police. A detective had Pena view 462 mugshots of Black men who matched the description Pena had provided, but Pena correctly said that none of the mugshots were of his attacker. Two

days later, Pena called 911 when he saw defendant; police then stopped a Black man who they thought matched the description Pena had given them. Pena correctly told the police that the man they had detained was not the man who had attacked him. The next morning, Pena saw defendant again and called the police. When the police arrived, Pena pointed defendant out, and defendant was arrested.

By New York County Indictment Number 4292/2016, filed on November 4, 2016, defendant was charged with one count each of attempted first-degree assault, second-degree assault, and third-degree criminal possession of a weapon. At trial, the defense theory was that Pena was mistaken when he identified defendant as his attacker. During the charge conference, defense counsel asked the judge to give the pattern jury instruction on single-witness identifications but did not request a separate instruction on cross-racial identifications. On July 21, 2017, the jury convicted defendant of all counts. On March 26, 2018, defendant was sentenced as noted above.

The Appellate Division, First Department affirmed, rejecting defendant's argument that his trial attorney had been ineffective for failing to request a cross-racial identification charge. The court found that defendant's ineffective-assistance claim was unreviewable on direct appeal because it involved "matters not fully explained by the record." People v. Watkins, 206 A.D.3d 452, 453 (1st Dept. 2022). In the alternative, the court rejected defendant's claim on the merits, concluding that he had shown neither that "it was objectively unreasonable for counsel to refrain from requesting a jury charge on cross-racial identification," nor that "such a request

would have been granted at the time of the trial, or that the absence of such a charge affected the outcome of the case." Watkins, 206 A.D.3d at 453.

This Court should affirm. Defendant's sole argument on appeal is that his trial counsel was constitutionally ineffective for failing to request a cross-racial identification charge. Defendant's argument is a categorical one: according to him, his counsel was required to request such a charge regardless of the weakness of any attack on Pena's cross-racial identification, and regardless of any reasons his trial counsel may have had for declining to pursue such a fruitless attack. For defendant, those factors are irrelevant because there could be no conceivable strategic reason not to request a cross-racial identification charge whenever a case involves a single-witness cross-racial identification.

Defendant's categorical argument is inconsistent with this Court's well-established ineffective-assistance precedents. When a defendant challenges his counsel's performance as ineffective based on a single alleged error, the error must be so egregious, clear-cut, and completely dispositive in light of the record that no reasonable attorney would have made it. Here, there was no clear legal or factual support for requesting a cross-racial identification charge at the time of defendant's trial. As a legal matter, this Court had not yet decided People v. Boone, 30 N.Y.3d 521 (2017), which for the first time held that a cross-racial identification charge was available upon demand. As a factual matter, the record developed at trial included concrete evidence that the eyewitness, Pena, had no difficulty making this cross-racial identi-

fication. Reasonable defense counsel could thus have concluded that any challenge to Pena's identification on cross-racial grounds was so weak as to not be worth making, especially in comparison to other, stronger challenges.

Defendant disregards these factors by asserting that counsel is constitutionally ineffective any time he omits an argument from which defendant has "everything to gain and nothing to lose." But this Court has consistently declined to adopt such a view of ineffective assistance and, to the contrary, has repeatedly recognized that counsel can reasonably decline to pursue a weak argument, even if presenting such an argument would not affirmatively harm the defendant.

Finally, even if counsel should have requested the charge, his failure to do so did not prejudice the defense or deprive defendant of a fair trial. As the Appellate Division correctly concluded, there is no indication that the trial court would have granted such a charge prior to Boone, and even less indication, given the trial record, that the jury would have drawn the adverse inference permitted but not mandated by the cross-racial identification charge.

QUESTION PRESENTED

Has defendant conclusively established on the existing record that his attorney was constitutionally ineffective solely for not requesting a cross-racial identification charge, when (1) there were legitimate reasons that counsel might not have requested the charge, including the weakness of any challenge to the particular witness's cross-racial identification; and (2) there was no reason to conclude that the court would

have granted the request or that the jury would have drawn an adverse inference against the eyewitness's ability to identify a defendant of a different race?

STATEMENT OF THE CASE

A. The Evidence at Trial

1. Defendant Attacks Pena on October 7, 2016.

In October 2016, DAVID PENA was a 65-year-old handyman who worked at three buildings located next to each other on East 103rd Street in Manhattan. Pena, who is non-Black Hispanic, was born in the Dominican Republic and moved to New York City in 1991 or 1992. He lived in East Harlem with his wife and had worked as a handyman in the same buildings since 2005 (Pena: A21-25, 82).

On Friday October 7th, Pena took a smoke break at about 1:00 p.m. As he stood on the sidewalk, he was approached by defendant, who was walking west toward Park Avenue. Defendant was holding an object in his right hand and had a dark-colored hoodie draped over his right shoulder. As Pena was looking up at the sky, defendant forcefully struck Pena with the object on Pena's left cheek (People's Exh. 4 [surveillance video], Video 1, 0:00:00-0:00:11; id., Video 2, 0:00:00-0:00:12; Pena: A21, 23-27, 30, 75, 82-83, 102).[1] The object was hard, "like a piece of cement"

[1] Unless otherwise specified, parenthetical references preceded by "A" are to Defendant's Appendix; those preceded by "SA" are to the People's Supplemental Appendix. People's Exhibit 4, which will be submitted under separate cover, contains two video files, named "Det Turner video 1" and "Det Turner video 2." Both videos depict the incident from a camera that is oriented to the northeast on East 103rd Street. The second video is 16 seconds longer. That video shows defendant hitting Pena, as well as their subsequent interaction. It also shows an additional camera angle from the same building that is oriented northwest on East 103rd Street. References to time in the citations to the videos refer to the time reflected on the video player.

(Pena: A30, 87, 117). As a result of the blow, Pena felt some pain in his face, but he did not lose consciousness or suffer memory loss (Pena: A32-34, 116).

Immediately after being hit, Pena went to the basement of 124 East 103rd Street and retrieved a wooden stick. Meanwhile, defendant paced back and forth outside. Armed with the wooden stick, Pena left the building, approached defendant, and, from a distance of about two car lengths, which Pena estimated to be about 10 to 15 feet, asked, "Why did you hit me?" (People's Exh. 4, Video 1, 0:00:11-0:00:23; id., Video 2, 0:00:12-0:00:25; Pena: A27, 28-29, 62-63, 103, 115-16). Defendant did not respond to Pena's question; he instead stood facing Pena for about five seconds, and, at one point, briefly pointed at Pena with his right hand. Defendant then turned his back to Pena and walked a few steps before turning and facing Pena again for another five or six seconds (Pena: A27, 63-66, 111, 117; People's Exh. 4, Video 1, 0:00:23-0:00:38; id., Video 2, 0:00:25-0:00:40).

When defendant looked in Pena's direction, Pena saw his face. It was sunny, the weather was clear, and there was nothing between the two men obstructing Pena's view. Pena had not consumed any alcohol or other intoxicating substances that day (Pena: A27-29, 64-65). He saw that defendant was Black, that he had a shaved head and a "little bit of a beard," and that he was holding a hoodie in his hand (Pena: A31). Defendant was a little taller and heavier than Pena, who was about 5'10" and weighed 150 pounds (Pena: A31-32, 93). Pena had seen defendant on East 103rd

Street the day before the attack, but he did not realize that it had been defendant until after the attack (Pena: A38-40, 142).

STANDARD OF REVIEW AND SUMMARY OF ARGUMENT

To establish an ineffective assistance claim under the United States Constitution, a defendant must first demonstrate that his counsel's performance was so deficient that the attorney was not functioning as the professional counsel guaranteed by the Sixth Amendment. That demonstration must overcome the strong presumption that counsel's conduct fell "within the wide range of reasonable professional assistance" appropriate under the circumstances of the case. Strickland v. Washington, 466 U.S. 668, 689-90 (1984). Even if a defendant can surmount that hurdle, he must further demonstrate prejudice, that is, a "reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." Id. at 694.

New York law provides a similar two-step standard. On the first prong, as under the federal Constitution, a defendant must show that his counsel's performance fell below a permissible standard of "meaningful representation" considering the evidence, the law, and the circumstances of the particular case, viewed in their totality. People v. Wragg, 26 N.Y.3d 403, 409 (2015); People v. Benevento, 91 N.Y.2d 708, 712 (1998). An attorney is presumed to have provided meaningful representation. See People v. Hobot, 84 N.Y.2d 1021, 1022 (1995). That presumption can be overcome

only if the absence of strategic or other legitimate explanations for counsel's alleged shortcomings is demonstrated.

ARGUMENT

DEFENSE COUNSEL WAS NOT INEFFECTIVE FOR DECLINING TO REQUEST A CROSS-RACIAL IDENTIFICATION CHARGE IN THIS CASE

Defendant contends that his trial attorney was constitutionally ineffective based on a single error: not requesting a cross-racial identification charge as part of his "honest-but-mistaken misidentification defense" (Defense Brief ["DB"]: 2). Because defendant asserts this claim on direct appeal without the benefit of a record on his trial counsel's reasoning, and because defendant identifies only this isolated error without raising broader objections to his counsel's overall performance, defendant can prevail only if there is essentially a per se rule of ineffective assistance from failing to request such a charge whenever a prosecution "rest[s] on a stranger cross-racial identification" (DB: 20).

There is no such categorical rule. Depending on the circumstances of a case, defense counsel could reasonably decline to request a cross-racial identification charge, including, as here, when there was good reason to believe that the particular witness's ability to identify defendant was not confounded by defendant's race. No clear-cut rule at the time of defendant's trial provided otherwise. Indeed, a rule requiring defense counsel to request a cross-racial identification charge in nearly every case would be inconsistent with this Court's decision in Boone, which left

that strategic choice to defense counsel. Finally, even assuming that counsel's performance here fell below the constitutional standard for meaningful representation, defendant has not shown that the absence of a request for a cross-racial identification charge caused any prejudice here. This Court should accordingly affirm the decision below.

CONCLUSION

The order of the Appellate Division should be affirmed.

Respectfully submitted,

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New York County
January 12, 2024

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the word limit of 22 NYCRR 500.13(c)(1), that it contains 2,015 words in the body of the brief, excluding the caption, tables and signature block, and that the count was made by the word-processing system used to prepare it.

MICHAEL J. YETTER
January 12, 2024